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PART I : SECTION (I) — GENERAL
Government Notifications

IMPORTS AND EXPORTS (CONTROL) ACT, No.1 OF 1969

REGULATIONS made by the Minister under Section 20 read with Subsection (3) of Section 4 and Section 14 of the Imports and Exports (Control) Act, No. 1 of 1969 as amended by Act, No. 48 of 1985 and No. 28 of 1987.

MALIK SAMARAWICKRAMA,
Minister of Development Strategies & International Trade.

Colombo,
10th August 2018.

Regulations

These regulations may be cited as the Imports and Exports (Control) Regulation No. 3 of 2018. The Regulations published under *Gazette (Extraordinary)* No. 1804/17 dated 03rd April 2013 and 2079/70 dated 13.07.2018 are hereby further amended.

2. All motor vehicles being imported into Sri Lanka shall comply with Vehicular Exhaust Emission Limits published in the Third Schedule of the *Gazette (Extraordinary)* No. 2079/42 dated 12.07.2018 OR the Fifth Schedule of the *Gazette (Extraordinary)* No. 2083/3 dated 06.08.2018, issued under the National Environment Act, No. 47 of 1980 as amended time to time.
3. All motor vehicles being imported into Sri Lanka which fall under the HS codes specified in the Column IV of the Schedule I being imported in to Sri Lanka shall comply with the Safety Measures/Standards specified in the column III of the schedule I
4. For the purpose of these Regulations
 - (a) Importation of brand new motor vehicles, classifiable under the HS Chapter 87 shall carry a manufacturer's certificate issued by the manufacturer of such motor vehicles to the effect that the motor vehicles comply with the Emissions Standards and Safety Measures / Standards referred to above.

- (b) Importation of all motor vehicles other than brand new motor vehicles referred to in (a) above, shall carry a Pre-Shipment Inspection Certificate, referred to in the Clause No.3 of the *Gazette (Extraordinary)* No.1804/17 dated 03rd April 2013, as amended from time to time to the effect that the motor vehicles comply with the Emissions Standards and Safety Measures / Standards referred to above. The Pre-Shipment Inspection Certificate shall only be issued by the authorized inspectors appointed by the *Gazette (Extraordinary)* No.1804/17 dated 03rd April 2013 as amended from time to time.
5. Safety Measures / Standards specified in the Clause No.3 shall not be applicable to the motor vehicles classified under the HS Codes listed in schedule II
 6. Importation of motor vehicles, classifiable under the Chapter 87 of the Harmonized Description and Coding System shall only be made by Letters of Credit (LCs), which shall be established prior to shipment of such motor vehicles. The Emissions Standards and Safety Measures / Standards, specified in these regulations shall be included in the Letters of Credit as mandatory requirements to be complied with in importation of such motor vehicles.
 7. The motor vehicles which do not comply with the said Emissions Standards and Safety Measures / Standards shall be re-exported by the importer(s) at his own cost.
 8. These regulations shall not be applicable for importation of motor vehicles, based on the Letters of Credit (LCs), established on or before 13th July 2018. Such Letters of Credit shall not be amended and the relevant imported motor vehicles should be cleared from Sri Lanka Customs on or before 31st October 2018,

Schedule I: Safety Measures / Standards

<i>I</i>	<i>II</i>	<i>III</i>			<i>IV</i>	<i>V</i>
<i>No.</i>	<i>HS Head- ing</i>	<i>Safety Measures</i>			<i>Applicable HS Codes</i>	<i>HS Codes <u>Not</u> Applicable</i>
		<i>Air Bags</i>	<i>Seat Belt</i>	<i>ABS</i>		
01	87.02	C	C	C	8702.10.12, 8702.10.13, 8702.10.19, 8702.10.21, 8702.10.29, 8702.10.32. 8702.10.33, 8702.10.39, 8702.10.41, 8702.10.49 8702.20.11, 8702.20.12, 8702.20.19, 8702.20.21, 8702.20.29, 8702.20.31, 8702.20.32, 8702.20.39, 8702.20.41, 8702.20.49 8702.30.11, 8702.30.12, 8702.30.19, 8702.30.21, 8702.30.29, 8702.30.31, 8702.30.32, 8702.30.39, 8702.30.41, 8702.30.49 8702.40.11, 8702.40.12, 8702.40.19, 8702.40.21, 8702.40.29, 8702.40.31, 8702.40.32, 8702.40.39, 8702.40.41, 8702.40.49	HS Codes coming under HS Heading 87.02 except HS Codes in Column IV

Schedule I: Safety Measures / Standards (Contd.)

I	II	III			IV	V
No.	HS Head- ing	Safety Measures			Applicable HS Codes	HS Codes <u>Not</u> Applicable
		Air Bags	Seat Belt	ABS		
					8702.90.12, 8702.90.13, 8702.90.19, 8702.90.21, 8702.90.29, 8702.90.32, 8702.90.33, 8702.90.39, 8702.90.41, 8702.90.49	
02	87.03	C	C	C	HS Codes coming under HS Heading 87.03 except HS Codes in Column V	8703.10.11, 8703.10.19, 8703.10.21, 8703.10.29 8703.21.30, 8703.21.40, 8703.21.51, 8703.21.52, 8703.21.53, 8703.21.54, 8703.21.55, 8703.21.62, 8703.21.64, 8703.21.73 8703.22.30, 8703.22.40 8703.23.30, 8703.23.40 8703.24.30, 8703.24.40 8703.31.30, 8703.31.40, 8703.31.50, 8703.31.60 8703.32.30, 8703.32.40 8703.33.30, 8703.33.40 8703.40.13, 8703.40.14, 8703.40.15, 8703.40.16, 8703.40.21, 8703.40.22, 8703.40.25, 8703.40.26, 8703.40.33, 8703.40.34, 8703.40.43, 8703.40.44, 8703.40.63, 8703.40.64, 8703.40.83, 8703.40.84 8703.50.13, 8703.50.14, 8703.50.15, 8703.50.16, 8703.50.21, 8703.50.22, 8703.50.25, 8703.50.26, 8703.50.33, 8703.50.34, 8703.50.43, 8703.50.44, 8703.50.63, 8703.50.64, 8703.50.83, 8703.50.84

Schedule I: Safety Measures / Standards (Contd.)

I	II	III			IV	V
No.	HS Head- ing	Safety Measures			Applicable HS Codes	HS Codes <u>Not</u> Applicable
		Air Bags	Seat Belt	ABS		
03	87.04	C	C	C	8703.60.13, 8703.60.14, 8703.60.15, 8703.60.16, 8703.60.21, 8703.60.22, 8703.60.25, 8703.60.26, 8703.60.33, 8703.60.34, 8703.60.43, 8703.60.44, 8703.60.63, 8703.60.64, 8703.60.83, 8703.60.84 8703.70.13, 8703.70.14, 8703.70.15, 8703.70.16, 8703.70.21, 8703.70.22, 8703.70.25, 8703.70.26, 8703.70.33, 8703.70.34, 8703.70.43, 8703.70.44, 8703.70.63, 8703.70.64, 8703.70.83, 8703.70.84 8703.80.11, 8703.80.12 8704.21.65, 8704.21.66, 8704.21.67, 8704.21.68 8704.31.65, 8704.31.66, 8704.31.67, 8704.31.68 8704.21.71, 8704.21.72, 8704.21.91, 8704.21.92, 8704.21.93, 8704.21.99 8704.31.71, 8704.31.72, 8704.31.91, 8704.31.92, 8704.31.93, 8704.31.99	8703.60.13, 8703.60.14, 8703.60.15, 8703.60.16, 8703.60.21, 8703.60.22, 8703.60.25, 8703.60.26, 8703.60.33, 8703.60.34, 8703.60.43, 8703.60.44, 8703.60.63, 8703.60.64, 8703.60.83, 8703.60.84 8703.70.13, 8703.70.14, 8703.70.15, 8703.70.16, 8703.70.21, 8703.70.22, 8703.70.25, 8703.70.26, 8703.70.33, 8703.70.34, 8703.70.43, 8703.70.44, 8703.70.63, 8703.70.64, 8703.70.83, 8703.70.84 8703.80.11, 8703.80.12 Air Bags are not Required for HS Heading 87.04 except Column IV Safety measures are not required for Auto Trishaws (8704.21.21, 8704.21.22) 8704.31.21, 8704.31.22, 8704.31.23 8704.90.10, 8704.90.20)
04	87.05	-	C	C	HS Codes coming under HS Heading 87.05	-

* (C – Comply with Safety Standards/Measures)

Schedule II.

<i>No.</i>	<i>HS Heading</i>
01	8701
02	8706
03	8707
04	8708
05	8709
06	8710
07	8711
08	8712
09	8713
10	8714
11	8715
12	8716

Note:

- Seat Belt** - In the case of the seat belt, driver & the front passengers should have three point seat belt and the other passengers should have minimum two point seat belt where applicable.
- Air Bags** - Driver and front passengers should have Standard Airbags
- ABS** - All vehicles should be manufactured with Anti - Locking Breaking System

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